

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 789

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO THE COEUR D'ALENE TRIBE WATER RIGHTS; AMENDING CHAPTER 14, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1430, IDAHO CODE, TO PROVIDE FOR THE APPROVAL, RATIFICATION, CONFIRMATION, AND AUTHORIZATION OF THE COEUR D'ALENE TRIBE WATER RIGHTS SETTLEMENT AGREEMENT; AMENDING CHAPTER 17, TITLE 42, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 42-1765B, IDAHO CODE, TO PROVIDE FOR THE COEUR D'ALENE TRIBAL WATER SUPPLY BANK; AND DECLARING AN EMERGENCY.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 14, Title 42, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 42-1430, Idaho Code, and to read as follows:

42-1430. THE COEUR D'ALENE TRIBE WATER RIGHTS SETTLEMENT AGREEMENT -- RATIFICATION AND AUTHORIZATION FOR IMPLEMENTATION. (1) As used in this section:

(a) "The Coeur d'Alene tribe water rights settlement agreement of 2026" or "agreement" means the Coeur d'Alene tribe water rights settlement agreement dated 2026, relating to CSRBA consolidated subcase No. 91-7755 in the CSRBA court.

(b) "CSRBA" means the Coeur d'Alene-Spokane river basin adjudication litigation before the CSRBA court, *In re CSRBA*, No. 49576.

(c) "CSRBA court" means the district court of the fifth judicial district of the state of Idaho, in and for the county of Twin Falls.

(2) The Coeur d'Alene tribe water rights settlement agreement of 2026 is hereby approved, ratified, and confirmed.

(3) The executive branch agencies or officers of the state with obligations under the Coeur d'Alene tribe water rights settlement agreement of 2026 shall execute and perform all actions consistent with this section that are necessary to implement the agreement.

SECTION 2. That Chapter 17, Title 42, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 42-1765B, Idaho Code, and to read as follows:

42-1765B. COEUR D'ALENE-SPOKANE RIVER BASIN -- COEUR D'ALENE TRIBAL WATER SUPPLY BANK. (1) The water resource board shall appoint a local rental committee to facilitate operation of a water supply bank for the off-reservation lease and rental of consumptive use federal reserved water rights held by or on behalf of the Coeur d'Alene tribe within the Coeur d'Alene-Spokane river basin, which shall be known as the Coeur d'Alene tribal water supply bank. Except as is inconsistent with this section, the provisions of section 42-1765, Idaho Code, and the board's water supply bank

1 rules applicable to the operation of a storage water rental pool shall apply
2 to the operation of the tribal water supply bank for such leases and rentals.

3 (2) The local rental committee shall have authority to rent consumptive
4 use federal reserved water rights held by or on behalf of the Coeur d'Alene
5 tribe, including natural flow and ground water rights, between consent-
6 ing owners and consenting renters, for beneficial use outside of the Coeur
7 d'Alene Indian reservation.

8 (3) Consistent with applicable law, rights to the use of water for a
9 portion of the approved period of use under a consumptive use federal re-
10 served water right held by or on behalf of the Coeur d'Alene tribe may be
11 accepted into the water supply bank and rented out to satisfy any minimum
12 stream flow water right held by the water resource board.

13 SECTION 3. An emergency existing therefor, which emergency is hereby
14 declared to exist, this act shall be in full force and effect on and after its
15 passage and approval.